

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1446

BY FINANCE COMMITTEE

AN ACT

RELATING TO APPROPRIATIONS; APPROPRIATING ADDITIONAL MONEYS TO THE DEPARTMENT OF HEALTH AND WELFARE FOR FISCAL YEAR 2027; APPROPRIATING ADDITIONAL MONEYS TO THE JUDICIAL BRANCH FOR FISCAL YEAR 2027; AUTHORIZING EXEMPTIONS FROM PROGRAM TRANSFER LIMITATIONS FOR BEHAVIORAL HEALTH PROGRAMS; DIRECTING THE USE OF THE STATE-DIRECTED OPIOID SETTLEMENT FUND; PROVIDING FOR CONDITIONS, LIMITATIONS, AND RESTRICTIONS; AND DECLARING AN EMERGENCY AND PROVIDING EFFECTIVE DATES.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. In addition to any other appropriation provided by law, there is hereby appropriated to the Department of Health and Welfare the following amounts to be expended according to the designated programs for trustee and benefit payments from the listed funds for the restoration of assertive community treatment and peer support services for the period July 1, 2026, through June 30, 2027:

FOR:

I. DIVISION OF MEDICAID - BASIC MEDICAID PLAN:

FROM:

State-Directed Opioid Settlement Fund	\$4,527,000
Idaho Millennium Income Fund	3,500,000
Cooperative Welfare (Federal) Fund	<u>20,525,000</u>
TOTAL	\$28,552,000

II. MENTAL HEALTH SERVICES - ADULT MENTAL HEALTH:

FROM:

State-Directed Opioid Settlement Fund	\$1,031,000
Idaho Millennium Income Fund	<u>1,119,000</u>
TOTAL	\$2,150,000

GRAND TOTAL	\$30,702,000
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SECTION 2. In addition to any other appropriation provided by law, there is hereby appropriated to the Judicial Branch in the Court Operations Division for the District Courts Program the following amounts to be expended according to the designated expense classes from the State-Directed

1 Opioid Settlement Fund for the restoration of peer support services for men-
2 tal health courts for the period July 1, 2026, through June 30, 2027:

3 FOR:

4	Operating Expenditures	\$25,000
5	Trustee and Benefit Payments	<u>225,000</u>
6	TOTAL	\$250,000

7 SECTION 3. EXEMPTIONS FROM PROGRAM TRANSFER LIMITATIONS FOR BEHAVIORAL
8 HEALTH PROGRAMS. Notwithstanding any provisions of law to the contrary, the
9 Department of Health and Welfare is hereby exempted from the provisions of
10 Section 67-3511(2), Idaho Code, allowing unlimited transfers into the Ba-
11 sic Medicaid Plan Program and the Adult Mental Health Program from other pro-
12 grams within the department for all moneys appropriated to it for the period
13 July 1, 2025, through June 30, 2026, for the purpose of funding assertive
14 community treatment and peer support services.

15 SECTION 4. OPIOID SETTLEMENT FUND USAGE. The Legislature finds and de-
16 clares that assertive community treatment and peer support services serve
17 the overarching purposes of the national opioid settlements even though not
18 every person assertive community treatment and peer support services serves
19 suffers from opioid use disorder (OUD). In a time of fiscal exigency, every
20 dollar matters to ensure assertive community treatment and peer support ser-
21 vices remain viable. Therefore, in accordance with provisions in the opi-
22 oid settlement agreements that allow the state to use a limited percentage
23 of settlement funds for purposes not directly related to OUD, and notwith-
24 standing the provisions of section 57-825, Idaho Code, or any other provi-
25 sion of law to the contrary, of the amounts appropriated in Section 1 and
26 Section 2 of this act from the State-Directed Opioid Settlement Fund, up to
27 \$5,808,000 may be used for assertive community treatment and peer support
28 services participants who face substance abuse disorders or mental health
29 conditions (SUD/MH) without co-occurring OUD as those terms are used in Ex-
30 hibit E, Schedule B of the settlement agreements.

31 SECTION 5. CONDITIONS, LIMITATIONS, AND RESTRICTIONS. Appropriations
32 made pursuant to this act are subject to the conditions, limitations, and re-
33 strictions specified in this act.

34 SECTION 6. An emergency existing therefor, which emergency is hereby
35 declared to exist, Section 3 of this act shall be in full force and effect on
36 and after passage and approval, and Sections 1, 2, 4, and 5 of this act shall
37 be in full force and effect on and after July 1, 2026.